



Notification Waiver Determination

BHP – expansion of Special Mining Lease at Olympic Dam, SA

Acquisition	BHP Olympic Dam Corporation Pty Ltd, a subsidiary of BHP Group Limited (BHP), applied for a notification waiver in respect of its proposed acquisition of mining rights over an additional area of land located in Olympic Dam, South Australia from the State of South Australia, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	7 May 2026

Parties to the Acquisition	BHP is an Australian headquartered natural resources company. BHP is a global leading producer of iron ore, copper and metallurgical coal. Relevantly, BHP operates the Olympic Dam Mine in South Australia, which is one of most significant global mineral deposits. The State of South Australia through the Department of Energy and Mining, is responsible for regulating mining rights in South Australia and owns/manages the underlying legal rights to the minerals. BHP proposes to acquire mining rights over an additional area of land located at Olympic Dam, as well as additional non-proprietary rights in relation to its existing operations on the Olympic Dam mine. The additional area is adjacent to BHP's existing special mining lease at Olympic Dam. The main mineral mined at Olympic Dam is copper, with gold, silver and uranium as by-products.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: - there is no removal of a competitor as a result of the Acquisition - the Acquisition is unlikely to affect BHP's ability to influence the domestic price of copper, as prices are typically set by reference to global conditions

	c. there are alternative producers and suppliers of copper, gold, silver and uranium in Australia and globally. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Philip Williams pursuant to a delegation under section 25(1) of the Act